

Dr Apoorve Sharma vs Bhargavi Sharma on 1 December, 2023

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NC: 2023:KHC:43491
WP No. 19942 of 2023

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 1ST DAY OF DECEMBER, 2023

BEFORE

THE HON'BLE MR. JUSTICE K. V. ARAVIND

WRIT PETITION NO. 19942 OF 2023 (GM-FC)

BETWEEN:

1. DR. APOORVE SHARMA,
S/O MR. ANIL SHARMA,
AGED ABOUT 39 YEARS,
RESIDING IN U.S.A,
THROUGH GENERAL POWER OF ATTORNEY HOLDER
MR. ANIL SHARMA,
PRESENTLY RESIDING AT APTT. NO 2202,
TOWER C, PLATINUM TOWERS, M. G. ROAD,
SECTOR 28, GURUGRAM - 122001,
HARYANA.

EARLIER AT
NO.1202, MALPE BLOCK,
SALCON VERANDAS,
GOLD COURSE ROAD,
GURUGRAM- 122002,
HARAYANA.

Digitally
signed by
VALLI M
Location:
High Court of
Karnataka

...PETITIONER

(BY MS. DEEPA J., ADVOCATE)

AND:

1. BHARGAVI SHARMA,
D/O MR K.S. LAKSHMINARAYANAN,
RESIDENT OF CC-401,
RBI OFFICERS QUARTERS,
CUNNINGHAM CRESCENT ROAD,
BANGALORE - 560002.

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2. MS.SHRUTHI LAKHANPAL,
D/O MR. N.K. LAKHANPAL,
AGED ABOUT 35 YEARS,
R/O BH-106, SHALIMAR BAGH EAST,
DELHI - 110088.

...RESPONDENTS

(BY SRI.RAMESH H., ADVOCATE FOR
SMT.SONIA RAJESH., ADVOCATE)

THIS WRIT PETITION IS FILED UNDER ARTICLE 227 OF
THE CONSTITUTION OF INDIA PRAYING TO QUASHING THE
ORDER DATED 11/04/2023 PASSED IN MC NO. 2791/2018 BY
THE HONBLE V ADDL. FAMILY JUDGE, BANGALORE VIDE
ANNEXURE-A IN SO FAR AS REJECTING THE INTERLOCUTORY
APPLICATION / IA NO. 4 VIDE ANNEXURE-E UNDER SECTION
10 CPC FOR STAYING THE SAID PROCEEDINGS WITHOUT
APPRECIATING THE REASONS MADE OUT IN THE SAID
APPLICATIONS FILED BY THE PETITIONER.

THIS WRIT PETITION COMING ON FOR ORDERS THIS
DAY, THE COURT MADE THE FOLLOWING:

ORDER

Both counsels for the petitioner and the respondents submit that this writ petition is filed against the order dated 11.04.2023 in M.C No.2791/2018 passed by the V Additional Principal Judge, Family Court, Bengaluru, on I.A No.4. During the pendency of the writ petition, the petition filed for dissolution of marriage under Section 13(1)(i)(ia)(ib) of Hindu Marriage Act, 1955, has been dismissed by the Principal Judge Family Court, Gurugram, NC: 2023:KHC:43491 in Petition No.254 and Computer IS.No.HMA/396/2018, dated 16.10.2023. A copy of the said judgment is placed before the Court along with a memo dated 01.12.2023 by learned counsel for the respondents. In view of dismissal of divorce petition, both counsels jointly submit that the present petition does not survive for consideration.

2. Memo and submissions are placed on record.

3. Accordingly, petition is dismissed as infructuous.

Sd/-

JUDGE RCK